

GORSUCH, J., concurring in judgment

did not “have the effect of law,” and “[i]t would be absurd to hold that the courts must subordinate their judgment as to the meaning of a . . . regulation to the mere unsupported opinion of an associate counsel in an administrative department.”²⁶

C

This Court did not cite *Seminole Rock*’s “controlling weight” dictum again until 1965, in *Udall v. Tallman*.²⁷ And though *Tallman* “did very little to advance the jurisprudential understanding of *Seminole Rock*,” it certainly helped fuel the expansion of so-called “*Seminole Rock* deference.”²⁸ From the 1960s on, this Court and lower courts began to cite the *Seminole Rock* dictum with increasing frequency and in a wider variety of circumstances, but still without much explanation. They also increasingly divorced *Seminole Rock* from *Skidmore*.²⁹

Auer represents the apotheosis of this line of cases. In the name of what some now call the *Auer* doctrine, courts have in recent years “mechanically applied and reflexively treated” *Seminole Rock*’s dictum “as a constraint upon the careful inquiry that one might ordinarily expect of courts engaged in textual analysis.”³⁰ Under *Auer*, judges are forced to subordinate their own views about what the law means to those of a political actor, one who may even be a party to the litigation before the court. After all, if the court agrees that the agency’s reading is the best one, *Auer* does no real work; the doctrine matters only when a court would conclude that the agency’s interpretation is *not* the best or fairest reading of the regulation.

²⁶ *Ibid.*

²⁷ 380 U. S. 1, 4, 17–18 (accepting a regulatory interpretation by the Secretary of the Interior that was consistent, widely disseminated, and heavily relied upon, while not suggesting any disagreement with the Secretary’s interpretation).

²⁸ Lost History 80.

²⁹ See generally *id.*, at 68–92, 98.

³⁰ *Id.*, at 53.

GORSUCH, J., concurring in judgment

To be sure, JUSTICE KAGAN paints a very different picture of *Auer*, asking us to imagine it riding to the rescue only in cases where the scales of justice are evenly balanced between two equally persuasive readings. But that's a fantasy: "If nature knows of such equipoise in legal arguments, the courts at least do not."³¹ In the real world the judge uses his traditional interpretive toolkit, full of canons and tie-breaking rules, to reach a decision about the best and fairest reading of the law. Of course, there are close cases and reasonable judges will sometimes disagree. But every day, in courts throughout this country, judges manage with these traditional tools to reach conclusions about the meaning of statutes, rules of procedure, contracts, and the Constitution. Yet when it comes to interpreting federal regulations, *Auer* displaces this process and requires judges instead to treat the agency's interpretation as controlling even when it is "not . . . the best one."³²

If that were not troubling enough, *Auer* has also become "a doctrine of uncertain scope and application."³³ This Court has never offered meaningful guidance on how to decide whether the agency's reading is "reasonable" enough to demand judicial deference—and lower courts have drawn that line in wildly different places.³⁴ Deepening the confusion, this Court and lower courts have, over time, tried to soften *Auer*'s rigidity by declaring that it "might" not apply

³¹ Scalia, *Judicial Deference to Administrative Interpretations of Law*, 1989 *Duke L. J.* 511, 520.

³² *Decker v. Northwest Environmental Defense Center*, 568 U.S. 597, 613 (2013); see *Pauley v. BethEnergy Mines, Inc.*, 501 U.S. 680, 702 (1991) (the agency's interpretation "need not be the best or most natural one by grammatical or other standards").

³³ Hickman & Thomson, *The Chevronization of Auer*, 103 *Minn. L. Rev. Headnotes* 103, 105 (2019).

³⁴ See Kavanaugh, *Fixing Statutory Interpretation*, 129 *Harv. L. Rev.* 2118, 2134–2144 (2016).

GORSUCH, J., concurring in judgment

in some ill-defined circumstances, such as when the agency’s interpretation “conflicts with a prior interpretation” or reflects a “convenient litigating position” or a “*post hoc* rationalization” for past agency action.³⁵ All this has resulted in “widespread confusion” about when and how to apply *Auer* deference.³⁶

In light of *Auer*’s many problems, it should come as no surprise that several Members of this Court,³⁷ along with a great many lower court judges³⁸ and members of the legal

³⁵ *Christopher v. SmithKline Beecham Corp.*, 567 U. S. 142, 155 (2012) (alterations and internal quotation marks omitted).

³⁶ Leske, *Splits in the Rock: The Conflicting Interpretations of the Seminole Rock Deference Doctrine* by the U. S. Courts of Appeals, 66 Admin. L. Rev. 787, 832 (2014); see Hickman & Thomson, *supra*, at 111 (noting a “glut of recent cases in which members of the same court are openly divided on the proper application of *Auer*”).

³⁷ See *Perez v. Mortgage Bankers Assn.*, 575 U. S. 92, 107–108 (2015) (ALITO, J., concurring in part and concurring in judgment); *id.*, at 108–112 (Scalia, J., concurring in judgment); *id.*, at 119–133 (THOMAS, J., concurring in judgment); *Decker*, 568 U. S., at 615–616 (ROBERTS, C. J., joined by ALITO, J., concurring); *id.*, at 616–621 (Scalia, J., concurring in part and dissenting in part); *Talk America, Inc. v. Michigan Bell Telephone Co.*, 564 U. S. 50, 67–69 (2011) (Scalia, J., concurring); see also Kavanaugh, Keynote Address: Justice Scalia and Deference 19:06 (June 2, 2016), <http://vimeo.com/169758593> (predicting “that *Auer* will someday be overruled and that Justice Scalia’s dissent in *Decker* will be the law of the land”).

³⁸ See, e. g., *Forrest Gen. Hospital v. Azar*, 926 F. 3d 221, 229–230 (CA5 2019); *San Diego Gas & Elec. Co. v. FERC*, 913 F. 3d 127, 145, n. 4 (CA9 2019) (Randolph, J., dissenting); *United States v. Havis*, 907 F. 3d 439, 450–452 (CA6 2018) (Thapar, J., concurring), vacated, 921 F. 3d 628, on reh’g en banc, 927 F. 3d 382 (CA6 2019); *Marsh v. J. Alexander’s LLC*, 905 F. 3d 610, 652–653 (CA9 2018) (Ikuta, J., dissenting); *Egan v. Delaware River Port Auth.*, 851 F. 3d 263, 279 (CA3 2017) (Jordan, J., concurring in judgment); *Perez v. Loren Cook Co.*, 803 F. 3d 935, 938, n. 2 (CA8 2015) (en banc); *Johnson v. McDonald*, 762 F. 3d 1362, 1366–1368 (CA Fed. 2014) (O’Malley, J., concurring); *Exelon Generation Co. v. Local 15, Int’l Brotherhood of Elec. Workers, AFL–CIO*, 676 F. 3d 566, 576, n. 5 (CA7 2012).

GORSUCH, J., concurring in judgment

academy,³⁹ have questioned *Auer*'s validity and pleaded with this Court to reconsider it.

D

That's where things stood when James Kisor asked the Department of Veterans Affairs to reopen his disability benefits claim. Mr. Kisor served as a United States Marine from 1962 through 1966 and saw combat in Vietnam. In the early 1980s, a VA counselor observed that Mr. Kisor was battling depression and suicidal thoughts and suggested he might be suffering from post-traumatic stress disorder. In light of this, Mr. Kisor filed a claim for disability benefits in 1982. But, in the end, the VA denied the claim.

In 2006, Mr. Kisor sought to reopen the matter. In connection with that request, he presented new evidence, including a psychiatrist's report diagnosing him with PTSD and additional records documenting his service in Vietnam. The VA reopened Mr. Kisor's claim and granted him disability benefits effective June 5, 2006, the date he had submitted his new request. Mr. Kisor argued that a VA regulation entitled him to an earlier effective date for disability benefits, one tracing back to his original submission in 1982. But the Board of Veterans Appeals concluded that the applicable regulation didn't authorize that relief.

Mr. Kisor appealed the Board's ruling all the way to the Federal Circuit, arguing that the Board had misinterpreted the relevant regulation. The Federal Circuit affirmed. Relying on the *Auer* doctrine, the court held that it had no

³⁹ See, e. g., Hickman & Thomson, *supra*, at 111–113; Adler, *Auer* Evasions, 16 Geo. J. L. & Pub. Pol'y 1, 26 (2018); Pojanowski, 16 Geo. J. L. & Pub. Pol'y, at 99; Knudsen & Wildermuth, Lessons From the Lost History of *Seminole Rock*, 22 Geo. Mason L. Rev. 647, 667 (2015); Leske, *supra*, at 789–793; Molot, The Judicial Perspective in the Administrative State: Reconciling Modern Doctrines of Deference with the Judiciary's Structural Role, 53 Stan. L. Rev. 1, 108–110 (2000); Anthony, 10 Admin. L. J., at 4–12; Manning, Constitutional Structure and Judicial Deference to Agency Interpretations of Agency Rules, 96 Colum. L. Rev. 612, 696 (1996).

GORSUCH, J., concurring in judgment

choice but to treat the Board’s interpretation as “‘controlling’” unless that interpretation was “‘plainly erroneous or inconsistent with the regulatio[n].’”⁴⁰ Without even trying to determine who had the better reading of the regulation, the Board or Mr. Kisor, the court declared that “[t]he Board’s interpretation does not strike us as either plainly erroneous or inconsistent with the VA’s regulatory framework.”⁴¹ Case closed.

Mr. Kisor sought and was denied rehearing en banc. Three judges dissented and joined those who have questioned “the logic behind continued adherence to the [*Auer*] doctrine”; they argued that, without *Auer* deference, Mr. Kisor’s reading of the regulation would likely prevail.⁴² Mr. Kisor then asked us to grant certiorari to reconsider *Auer*. Thinking it past time to do so, we granted the petition.⁴³

II. The Administrative Procedure Act

When this Court speaks about the rules governing judicial review of federal agency action, we are not (or shouldn’t be) writing on a blank slate or exercising some common-law-making power. We are supposed to be applying the Administrative Procedure Act. The APA is a “seminal” statute that Congress wrote to define the relationship between courts and agencies.⁴⁴ Some have even described it as a kind of constitution for our “administrative state.” Yet, remarkably, until today this Court has never made any serious effort to square the *Auer* doctrine with the APA. Even now, only four Justices make the attempt. And for at least two reasons, their arguments are wholly unpersuasive.

⁴⁰ *Kisor v. Shulkin*, 869 F. 3d 1360, 1367 (2017).

⁴¹ *Id.*, at 1368.

⁴² *Kisor v. Shulkin*, 880 F. 3d 1378, 1379 (CA Fed. 2018) (opinion of O’Malley, J.).

⁴³ 586 U. S. 1050 (2018).

⁴⁴ *Abbott Laboratories v. Gardner*, 387 U. S. 136, 140 (1967).

GORSUCH, J., concurring in judgment

A

The first problem lies in § 706. That provision instructs reviewing courts to “decide all relevant questions of law” and “set aside agency action . . . found to be . . . not in accordance with law.”⁴⁵ Determining the meaning of a statute or regulation, of course, presents a classic legal question. But in case these directives were not clear enough, the APA further directs courts to “determine the meaning” of any relevant “agency action,” including any rule issued by the agency.⁴⁶ The APA thus requires a reviewing court to resolve for itself any dispute over the proper interpretation of an agency regulation. A court that, in deference to an agency, adopts something other than the best reading of a regulation isn’t “decid[ing]” the relevant “questio[n] of law” or “determin[ing] the meaning” of the regulation. Instead, it’s allowing the agency to dictate the answer to that question. In doing so, the court is abdicating the duty Congress assigned to it in the APA.⁴⁷

JUSTICE KAGAN seeks to address the glaring inconsistency between our judge-made rule and the controlling statute this way. On her account, the APA tells a reviewing court to “determine the meaning” of regulations, but it does not tell the court “*how*” to do that. Thus, we are told, reading the regulation for itself and deferring to the agency’s reading are just two equally valid ways for a court to fulfill its statutory duty to “determine the meaning” of the regulation. *Ante*, at 581–582.

But the APA isn’t as anemic as that. Its unqualified command requires the court to determine legal questions—including questions about a regulation’s meaning—by its own

⁴⁵ 5 U. S. C. § 706.

⁴⁶ *Ibid.*; see § 551(13) (defining “agency action”).

⁴⁷ The case before us doesn’t arise under the APA, but the statute that governs here is plainly modeled on the APA and contains essentially the same commands. It directs a reviewing court to “decide all relevant questions of law” and to “set aside any regulation or any interpretation thereof” that is “not in accordance with law.” 38 U. S. C. § 7292(d)(1).

GORSUCH, J., concurring in judgment

lights, not by those of political appointees or bureaucrats who may even be self-interested litigants in the case at hand. Nor can there be any doubt that, when Congress wrote the APA, it knew perfectly well how to require judicial deference to an agency when it wished—in fact, Congress repeatedly specified deferential standards for judicial review *elsewhere* in the statute.⁴⁸ But when it comes to the business of interpreting regulations, no such command exists; instead, Congress told courts to “determine” those matters for themselves. Though one hardly needs to be an academic to recognize the point, “commentators in administrative law have ‘generally acknowledged’ that Section 706 seems to require de novo review on questions of law.”⁴⁹

⁴⁸ See, e.g., § 706(2)(A) (arbitrary and capricious, abuse of discretion); § 706(2)(E) (substantial evidence); see also *Universal Camera Corp. v. NLRB*, 340 U. S. 474, 482, n. 14 (1951) (noting that as originally proposed, the APA’s judicial review provision would have included an explicit requirement for courts to accord “due weight” to “the experience, technical competence, specialized knowledge, and legislative policy of the agency involved as well as the discretionary authority conferred upon it” (internal quotation marks omitted)).

⁴⁹ Duffy, *Administrative Common Law in Judicial Review*, 77 *Texas L. Rev.* 113, 194–195 (1998); see Merrill, *Capture Theory and the Courts: 1967–1983*, 72 *Chi.-Kent L. Rev.* 1039, 1085–1086 (1997) (noting the “embarrassing” fact that “the APA appears to compel th[e] conclusion” that “courts should decide all questions of law de novo”). See also, e.g., Origins 985; Mashaw, *Rethinking Judicial Review of Administrative Action: A Nineteenth Century Perspective*, 32 *Cardozo L. Rev.* 2241, 2243 (2011); Garrett, *Legislating Chevron*, 101 *Mich. L. Rev.* 2637, 2640 (2003); Molot, *Reexamining Marbury in the Administrative State: A Structural and Institutional Defense of Judicial Power over Statutory Interpretation*, 96 *Nw. U. L. Rev.* 1239, 1249 (2002); Anthony, 10 *Admin. L. J. Am. U.*, at 9–10; Farina, *Statutory Interpretation and the Balance of Power in the Administrative State*, 89 *Colum. L. Rev.* 452, 473, and n. 85 (1989); Starr, Sunstein, Willard, & Morrison, *Judicial Review of Administrative Action in a Conservative Era*, 39 *Admin. L. Rev.* 353, 368 (1987) (remarks of Prof. Sunstein); Pierce & Shapiro, *Political and Judicial Review of Agency Action*, 59 *Texas L. Rev.* 1175, 1182 (1981); 4 K. Davis, *Administrative Law* § 30.01, pp. 190–191 (1958).

GORSUCH, J., concurring in judgment

What the statutory language suggests, experience confirms. If *Auer* deference were really just another way for courts to “determine the meaning” of regulations under § 706, you might expect that a final judicial “determination” would at least settle, as a matter of precedent, the question of what the regulation “means.” Of course, even after one court has spoken on a regulation’s meaning, that court or another might properly give weight to a new agency interpretation as part of the court’s own decisionmaking process. See *supra*, at 597. But in light of *National Cable & Telecommunications Assn. v. Brand X Internet Services*,⁵⁰ courts have interpreted *Auer* as forbidding a court from ever “determin[ing] the meaning” of a regulation with the force that normally attaches to precedent, because an agency is always free to adopt a different view and insist on judicial deference to its new judgment.⁵¹ And if an agency can not only control the court’s initial decision but also revoke that decision at any time, how can anyone honestly say the court, rather than the agency, ever really “determine[s]” what the regulation means?

To test the point further, consider a statute that tells a court to “determin[e]” an appropriate sentence in a criminal case.⁵² If the judge said he was sending a defendant to prison for longer than he believed appropriate only in deference to the government’s “reasonable” sentencing recommendation, would anyone really think that complied with the law? Or take a statute that instructs a court to “determine” whether a consent judgment proposed by the government in a civil antitrust case “is in the public interest.”⁵³ If a court thought the proposed judgment harmful to the public but decided to defer to the government’s “reasonable” contrary

⁵⁰ 545 U. S. 967 (2005).

⁵¹ See, e. g., *In re Lovin*, 652 F. 3d 1349, 1353–1354 (CA Fed. 2011); *Levy v. Sterling Holding Co.*, 544 F. 3d 493, 502–503 (CA3 2008).

⁵² 18 U. S. C. § 3553(a).

⁵³ 15 U. S. C. § 16(e)(1).

GORSUCH, J., concurring in judgment

view anyway, would anyone suggest the court had complied with Congress’s instruction?

Nor does JUSTICE KAGAN’s reading of § 706 offer any logical stopping point. If courts can “determine the meaning” of a regulation by deferring to any “reasonable” agency reading, then why not by deferring to *any* agency reading? If it were really true that the APA has nothing to say about *how* courts decide what regulations mean, then it would follow that the APA tolerates a rule that “the agency is always right.” And if you find yourself in a place as absurd as that, you might want to consider whether you’ve taken a wrong turn along the way.

B

The problems don’t end there. *Auer* is also incompatible with the APA’s instructions in § 553. That provision requires agencies to follow notice-and-comment procedures when issuing or amending legally binding regulations (what the APA calls “substantive rules”), but not when offering mere interpretations of those regulations.⁵⁴ An agency wishing to adopt or amend a binding regulation thus must publish a proposal in the Federal Register, give interested members of the public an opportunity to submit written comments on the proposal, and consider those comments before issuing the final regulation. Under the APA, that regulation then carries the force of law unless and until it is amended or repealed.⁵⁵ By contrast, an agency can announce an interpretation of an existing substantive regulation without advance warning and in pretty much whatever form it chooses.

Auer effectively nullifies the distinction Congress drew here. Under *Auer*, courts must treat as “controlling” not only an agency’s duly promulgated rules but also its mere interpretations—even ones that appear only in a legal brief,

⁵⁴ See *Perez*, 575 U. S., at 95–96.

⁵⁵ *United States v. Nixon*, 418 U. S. 683, 695–696 (1974).

GORSUCH, J., concurring in judgment

press release, or guidance document issued without affording the public advance notice or a chance to comment. For all practical purposes, “the new interpretation might as well be a new regulation.”⁵⁶ *Auer* thus obliterates a distinction Congress thought vital and supplies agencies with a shortcut around the APA’s required procedures for issuing and amending substantive rules that bind the public with the full force and effect of law.⁵⁷

Think of it this way. We’ve held that the Constitution’s specification of a “single, finely wrought” procedure for the enactment of statutes (bicameralism and presentment) necessarily implies that Congress cannot amend an enacted statute without following that procedure—say, by allowing a single House to change what the law requires.⁵⁸ By the same logic, Congress’s specification in the APA of procedures for the creation of new substantive rules (like notice and comment) necessarily implies that an agency cannot amend a substantive rule without following those procedures. To hold otherwise, as *Auer* demands, subverts the APA’s design.

Certain *amici* contend this argument is “out of place” in this particular case because the VA happened to issue the interpretation challenged here in an adjudicative proceeding.⁵⁹ But the premise on which they proceed—that the APA permits agencies to issue “controlling” amendments to their regulations in adjudicative proceedings—is not correct. Once an agency issues a substantive rule through notice and comment, it can amend that rule only by following the same notice-and-comment procedures.⁶⁰ Whether an agency is-

⁵⁶ *Perez*, 575 U. S., at 127 (THOMAS, J., concurring in judgment).

⁵⁷ *Ibid.*; see *id.*, at 110 (Scalia, J., concurring in judgment) (*Auer* lets agencies “use [interpretive] rules not just to advise the public, but also to bind them”).

⁵⁸ See *INS v. Chadha*, 462 U. S. 919, 951, 954 (1983).

⁵⁹ Brief for Administrative Law Scholars as *Amici Curiae* 9–10, n. 4.

⁶⁰ See *Perez*, 575 U. S., at 101; *Marseilles Land & Water Co. v. FERC*, 345 F. 3d 916, 920 (CA DC 2003).

GORSUCH, J., concurring in judgment

sues its interpretation in a press release or something it chooses to call an “adjudication,” all we have is the agency’s opinion about what an existing rule means, something that the APA tells us is *not* binding in a court of law or on the American people.

If that won’t work, JUSTICE KAGAN tries an alternative argument from nearly the opposite direction. She replies that affording *Auer* deference to an agency’s interpretation of its own rules never offends the APA because the agency’s interpretation lacks “the force of law” associated with substantive rules. Agency interpretations lack this force, we are told, because a court always retains the power to decide at least whether the interpretation is entitled to deference. *Ante*, at 583–584. But this argument rests on an implausibly narrow understanding of what it means for an agency action to bear the force of law. Under JUSTICE KAGAN’s logic, even a binding substantive rule would lack the force of law because a court retains the power to decide whether the rule is arbitrary and capricious and thus invalid under the APA. But no one believes that. While an agency interpretation, just like a substantive rule, “must meet certain conditions before it gets deference,” “once it does so [*Auer* makes it] every bit as binding as a substantive rule.”⁶¹ To suggest that *Auer* does not make an agency’s interpretive guidance “binding o[n] anyone,” *ante*, at 584, is linguistic hocus-pocus.

C

If *Auer* cannot be squared with the text of the APA, JUSTICE KAGAN suggests it at least conforms to a reasonable “presumption about congressional intent.” *Ante*, at 569. The theory seems to be that whenever Congress grants an agency “rulemaking power,” it *also* implicitly gives the agency “the power authoritatively to interpret” whatever rules the agency chooses to adopt. *Ante*, at 569–570. But against

⁶¹ *Perez*, 575 U. S., at 110–111 (Scalia, J., concurring in judgment).

GORSUCH, J., concurring in judgment

the clear statutory commands Congress gave us in the APA, what sense does it make to “presume” that Congress really, secretly, wanted courts to treat agency interpretations as binding? Normally, this Court does not allow hidden legislative intentions to “muddy” such plainly expressed statutory directives.⁶²

Even on its own terms, too, this argument proves pretty muddy. It goes something like this: The drafters of the APA did not intend to “‘significantly alter’” established law governing judicial review of agency action as of 1946; the *Auer* doctrine was part of that established law; therefore, the APA implicitly requires courts to afford agencies *Auer* deference. *Ante*, at 582–583. But neither of this syllogism’s essential premises stands on solid ground.

Take the major premise—that those who adopted the APA intended to work no change in the established law of judicial review of agency action. JUSTICE KAGAN is right, of course, that Attorney General Clark claimed as much shortly after the APA’s passage. *Ante*, at 582. But his view, which reflected the interests of the executive branch, was far from universally shared. Others, including many members of Congress, thought the APA would clarify, if not expand, the scope of judicial review. For example, Senator McCarran, the Chairman of the Judiciary Committee, wrote that it would be “hard . . . for anyone to argue that this Act did anything other than cut down the ‘cult of discretion’ so far as federal law is concerned.”⁶³ And both the House and Senate reports on the APA said it was intended to “provid[e] that questions of law are for courts rather than agencies to decide in the last analysis.”⁶⁴

⁶² *Milner v. Department of Navy*, 562 U.S. 562, 572 (2011).

⁶³ McCarran, Improving “Administrative Justice”: Hearings and Evidence; Scope of Judicial Review, 32 A. B. A. J. 827, 893 (1946).

⁶⁴ H. R. Rep. No. 1980, 79th Cong., 2d Sess., 44 (1946); accord, S. Rep. No. 752, 79th Cong., 1st Sess., 28 (1945); 92 Cong. Rec. 5654 (1946) (statement of Rep. Walter). See also Shepherd, *Fierce Compromise: The Ad-*

GORSUCH, J., concurring in judgment

Just five years after the APA's passage, this Court seemed to side with those who thought the APA was intended to do more than just summarize existing law. In an opinion by Justice Frankfurter, the Court opined that the APA required courts to assume "*more* responsibility" for reviewing agency decisions "than some courts ha[d] shown in the past."⁶⁵ One early commentator likewise observed that the APA seemed designed to eliminate all doubt that questions of law "shall be decided by the reviewing Court for itself, and in the exercise of its own independent judgment"; "[m]ore explicit words to impose this mandate," he thought, "could hardly be found."⁶⁶

JUSTICE KAGAN's syllogism runs into even more trouble with its minor premise—that the *Auer* doctrine was a well-established part of the common law background when Congress enacted the APA in 1946. As we've seen, this Court planted the seeds of *Auer* deference for the first time in dictum in *Seminole Rock*, just a year before Congress passed the APA. See Part I–B, *supra*. And that dictum did not somehow immediately become an entrenched part of the common law: For years following *Seminole Rock*, courts and "commentators largely ignored" it,⁶⁷ and those who took notice weren't sure what to make of it. Professor Davis, for example, doubted that the dictum could be "taken at face value" given that it seemed "irreconcilable" with the Court's approach in other cases.⁶⁸ In truth, when Congress passed

ministrative Procedure Act Emerges from New Deal Politics, 90 Nw. U. L. Rev. 1557, 1662–1666 (1996).

⁶⁵ *Universal Camera*, 340 U. S., at 490 (emphasis added).

⁶⁶ Dickinson, Administrative Procedure Act: Scope and Grounds of Broadened Judicial Review, 33 A. B. A. J. 434, 516 (1947). See also Origins 990–991 (critiquing the Attorney General's characterization of the APA as "inherently question begging" and unsupported by any analysis).

⁶⁷ Adler, 16 Geo. J. L. & Pub. Pol'y, at 7; see Lost History 63; Pojanowski, 16 Geo. J. L. & Pub. Pol'y, at 95–96.

⁶⁸ Davis, 50 Colum. L. Rev., at 597–598; see also Davis, 57 Yale L. J., at 936, n. 72; Newman, 35 Cal. L. Rev., at 521–522.

GORSUCH, J., concurring in judgment

the APA the law of judicial review of agency action was in a confused state. During the congressional hearings on the bill, one witness’s suggestion that Congress should leave the scope of judicial review “as it now is” drew this fair reply from Representative Walter, chairman of the House Subcommittee on Administrative Law and author of the House Report on the APA: “You say ‘as it now is.’ Frankly, I do not know what it now is [T]he Supreme Court apparently changes its mind daily.”⁶⁹

III. The Constitution

Not only is *Auer* incompatible with the APA; it also sits uneasily with the Constitution. Article III, § 1, provides that the “judicial Power of the United States” is vested exclusively in this Court and the lower federal courts. A core component of that judicial power is “the duty of interpreting [the laws] and applying them in cases properly brought before the courts.”⁷⁰ As Chief Justice Marshall put it, “[i]t is emphatically the province and duty of the judicial department to say what the law is.”⁷¹ And never, this Court has warned, should the “judicial power . . . be shared with [the] Executive Branch.”⁷² Yet that seems to be exactly what *Auer* requires.

A

Our Nation’s founders were painfully aware of the dangers of executive and legislative intrusion on judicial decision-making. One of the abuses of royal power that led to the

⁶⁹ Hearings on H. R. 184 et al. before the House Committee on the Judiciary, 79th Cong., 1st Sess., 38 (1945); see *Origins* 988–989.

⁷⁰ *Patchak v. Zinke*, 583 U. S. 244, 249 (2018) (plurality opinion) (quoting *Massachusetts v. Mellon*, 262 U. S. 447, 488 (1923)).

⁷¹ *Marbury v. Madison*, 1 Cranch 137, 177 (1803); see also *Wayman v. Southard*, 10 Wheat. 1, 46 (1825) (“[T]he legislature makes, the executive executes, and the judiciary construes the law”); *The Federalist* No. 78, p. 467 (C. Rossiter ed. 1961) (A. Hamilton).

⁷² *Miller v. Johnson*, 515 U. S. 900, 922 (1995).

GORSUCH, J., concurring in judgment

American Revolution was King George’s attempt to gain influence over colonial judges.⁷³ Colonial legislatures, too, had interfered with the courts’ independence “at the behest of private interests and factions.”⁷⁴ These experiences had taught the founders that “‘there is no liberty if the power of judging be not separated from the legislative and executive powers.’”⁷⁵ They knew that when political actors are left free not only to adopt and enforce written laws, but also to control the interpretation of those laws, the legal rights of “litigants with unpopular or minority causes or . . . who belong to despised or suspect classes” count for little.⁷⁶ Maybe the powerful, well-heeled, popular, and connected can wheedle favorable outcomes from a system like that—but what about everyone else? They are left always a little unsure what the law is, at the mercy of political actors and the shifting winds of popular opinion, and without the chance for a fair hearing before a neutral judge. The rule of law begins to bleed into the rule of men.

Experiencing all this in their own time, the founders sought to ensure that those who came after them would not.

⁷³ See Declaration of Independence ¶11.

⁷⁴ *Plaut v. Spendthrift Farm, Inc.*, 514 U. S. 211, 220–221 (1995).

⁷⁵ The Federalist No. 78, at 466.

⁷⁶ *Palmore v. United States*, 411 U. S. 389, 412 (1973) (Douglas, J., dissenting); see *Oil States Energy Services, LLC v. Greene’s Energy Group, LLC*, 584 U. S. 325, 348 (2018) (GORSUCH, J., dissenting) (“[W]hen an independent Judiciary gives ground to bureaucrats in the adjudication of cases, the losers will often prove the unpopular and vulnerable”); *United States v. Hatter*, 532 U. S. 557, 568–569 (2001) (quoting John Marshall’s admonition that a judge who may be called on to decide a dispute “‘between the most powerful individual in the community, and the poorest and most unpopular,’” must be “‘perfectly and completely independent, with nothing to influence or control him but God and his conscience’” (alterations omitted)); Jackson, *The Meaning of Statutes: What Congress Says or What the Court Says*, 34 A. B. A. J. 535, 536 (1948) (“[T]he interpretation of [the laws’] fair meaning . . . should be made by judges as independent of politics as humanly possible and not serving the interests of the class for whom, or a majority by whom, legislation is enacted”).

GORSUCH, J., concurring in judgment

Believing that “[n]o maxim was better established” than “that the power of making ought to be kept distinct from that of expounding, the laws,”⁷⁷ they designed a judiciary that would be able to interpret the laws “free from potential domination by other branches of government.”⁷⁸ To that end, they resisted proposals that would have subjected judicial decisions to review by political actors.⁷⁹ And they rejected the British tradition of using the upper house of the legislature as a court of last resort, out of fear that a body with “even a partial agency in passing bad laws” would operate under the “same spirit” in “interpreting them.”⁸⁰ Instead, they gave federal judges life tenure, subject only to removal by impeachment; and they guaranteed that the other branches could not reduce judges’ compensation so long as they remained in office.

The founders afforded these extraordinary powers and protections not for the comfort of judges, but so that an independent judiciary could better guard the people from the arbitrary use of governmental power. And sitting atop the judicial branch, this Court has always carried a special duty to “jealously guar[d]” the Constitution’s promise of judicial independence.⁸¹ So we have long resisted any effort by the other branches to “‘usurp a court’s power to interpret and apply the law to the circumstances before it.’”⁸² The judicial power to interpret the law, this Court has held, “can no more be shared with another branch than the Chief Executive, for example, can share with the Judiciary the veto

⁷⁷ 2 Records of the Federal Convention of 1787, p. 75 (M. Farrand ed. 1911); see also Manning, 96 Colum. L. Rev., at 640–648.

⁷⁸ *United States v. Will*, 449 U.S. 200, 218 (1980).

⁷⁹ See The Federalist No. 81, at 482 (A. Hamilton).

⁸⁰ *Id.*, at 483.

⁸¹ *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*, 458 U.S. 50, 60 (1982) (plurality opinion).

⁸² *Bank Markazi v. Peterson*, 578 U.S. 212, 225 (2016) (alterations omitted).

GORSUCH, J., concurring in judgment

power, or the Congress share with the Judiciary the power to override a Presidential veto.”⁸³

Auer represents no trivial threat to these foundational principles. Under the APA, substantive rules issued by federal agencies through notice-and-comment procedures bear “the ‘force and effect of law’”⁸⁴ and are part of the body of federal law, binding on private individuals, that the Constitution charges federal judges with interpreting. Yet *Auer* tells the judge that he must interpret these binding laws to mean not what he thinks they mean, but what an executive agency says they mean. Unlike Article III judges, executive officials are not, nor are they supposed to be, “wholly impartial.”⁸⁵ They have their own interests, their own constituencies, and their own policy goals—and when interpreting a regulation, they may choose to “press the case for the side [they] represen[t]” instead of adopting the fairest and best reading.⁸⁶ *Auer* thus means that, far from being “kept distinct,” the powers of making, enforcing, and interpreting laws are united in the same hands—and in the process a cornerstone of the rule of law is compromised.

Consider an analogy. The Court has long held that Congress cannot “‘indirectly control the action of the courts, by requiring of them a construction of the law according to its

⁸³ *Stern v. Marshall*, 564 U. S. 462, 483 (2011) (internal quotation marks omitted).

⁸⁴ *Perez*, 575 U. S., at 96; see *Chrysler Corp. v. Brown*, 441 U. S. 281, 295–296 (1979). To be sure, our precedent allowing executive agencies to issue legally binding regulations to govern private conduct may raise constitutional questions of its own. See, e. g., *Department of Transportation v. Association of American Railroads*, 575 U. S. 43, 70–76 (2015) (THOMAS, J., concurring in judgment).

⁸⁵ Cox, Judge Learned Hand and the Interpretation of Statutes, 60 Harv. L. Rev. 370, 390 (1947).

⁸⁶ *Id.*, at 390–391, and n. 58; see also Kavanaugh, 129 Harv. L. Rev., at 2151 (in pursuing their policy goals, “[e]xecutive branch agencies often think they can take a particular action unless it is *clearly forbidden*”).

GORSUCH, J., concurring in judgment

own views.’”⁸⁷ If Congress disagrees with how courts are interpreting an existing statute, it is free to amend the statute to establish a different rule going forward. What it cannot do is issue “a mandate . . . to compel the courts to construe and apply [existing law], not according to the judicial, but according to the legislative judgment.”⁸⁸ As early as 1804, when a lawyer argued before this Court that an Act of the North Carolina legislature could not control the Court’s construction of an earlier North Carolina statute because “[t]o declare what the law is, or has been, is a judicial power,” not a legislative power, the Court stopped him, deeming the point too plain for argument.⁸⁹

But if the legislature can’t control a judge’s interpretation of an existing statute, how can an executive agency control a judge’s interpretation of an existing and equally binding regulation? *Auer* allows an agency to do exactly what this Court has always said a legislature cannot do: “compel the courts to construe and apply” a law on the books, “not according to the judicial . . . judgment,” but according to the judgment of another branch.⁹⁰ When we defer to an agency interpretation that differs from what we believe to be the best interpretation of the law, we compromise our judicial independence and deny the people who come before us the impartial judgment that the Constitution guarantees them. And we mislead those whom we serve by placing a judicial *imprimatur* on what is, in fact, no more than an exercise of raw political executive power.⁹¹

⁸⁷ *Plaut*, 514 U. S., at 225 (quoting T. Cooley, *Constitutional Limitations* 95 (1868)).

⁸⁸ *Id.*, at 95; see also *Bank Markazi*, 578 U. S., at 225, n. 17.

⁸⁹ *Ogden v. Blackledge*, 2 Cranch 272, 277.

⁹⁰ Cooley, *supra*, at 95.

⁹¹ Cf. *Cary v. Curtis*, 3 How. 236, 253, 257 (1845) (Story, J., dissenting) (if the “right to interpret the laws” is taken away from courts and “confided to an executive functionary,” then “the judicial power, designed by the Constitution to be the final and appellate jurisdiction to interpret our laws, is superseded in its most vital and important functions”).

GORSUCH, J., concurring in judgment

B

What do our colleagues have to say about these concerns? A majority has nothing to offer, and JUSTICE KAGAN dismisses them out of hand. In fact, she barely mentions the Constitution, other than to assure us that *Auer* does not allow agencies to “usur[p] the interpretive role of courts” because “courts retain a firm grip on the interpretive function” through their ability to decide whether *Auer* deference applies. *Ante*, at 586. But that is no assurance at all. The judicial power has always been understood to provide the people with a neutral arbiter who bears the responsibility and duty to “expound and interpret” the governing law, not just the power to say whether *someone else’s* interpretation, let alone the interpretation of a self-interested political actor, is “reasonable.”⁹²

To be sure, it’s conceivable that Congress might seek to limit the ability of judges to remedy an adverse agency action. It might, for example, provide that a court shall have power to set aside agency action pursuant to a regulation only if the action was based on an unreasonable interpretation of the regulation. But even assuming the constitutionality of a hypothetical statute like that, *Auer* is different. It does not *limit* the scope of the judicial power; instead, it seeks to *coopt* the judicial power by requiring an Article III judge to decide a case before him according to principles that he believes do not accurately reflect the law. Under *Auer*, a judge is required to lay aside his independent judgment and declare affirmatively that a regulation *means* what the agency *says* it means—and, thus, that the law *is* what the agency *says* it is. Then the judge is compelled to exercise his judicial authority to adjust private rights and obligations based on the agency’s (mis)understanding of the law. If *Auer* were a statute, it would not be an exercise of Congress’s “power (within limits) to tell the courts what *classes*

⁹² *Marbury*, 1 Cranch, at 177.

GORSUCH, J., concurring in judgment

of cases they may decide,” or what relief they may supply, but a forbidden attempt “to prescribe or superintend *how* they decide those cases.”⁹³ And in the absence of any statute like that, this Court surely should not so freely give away to the executive branch its assigned responsibility to interpret the laws. “Abdication of responsibility is not part of the constitutional design.”⁹⁴

In the end, JUSTICE KAGAN’s only real reply is this: However misguided it may be to hand over our interpretive powers to executive agencies, at least there isn’t a mountain of empirical evidence showing that agencies have used this power to deliberately write “vague and open-ended” regulations to maximize their interpretive leeway. *Ante*, at 585. But even this misses the point. Whether or not regulations are “‘designed’” to be vague, *ibid.*, many can be read in different ways, especially when new and unanticipated applications arise; cases like that come before the courts all the time. Without *Auer*’s shadow hanging over them, parties would receive a fair hearing before an impartial judge. The agency’s interpretation would sometimes be rejected; and that, in turn, might lead it to solicit public comment on possible amendments to the regulation, which would provide an opportunity for public input that might produce better policy. But with *Auer*, there is no fair hearing and no need for the agency to amend the regulation through notice and comment. Whether purposeful or not, the agency’s failure to write a clear regulation winds up increasing its power, allowing it to both write and interpret rules that bear the force of law—in the process uniting powers the Constitution deliberately separated and denying the people their right to an independent judicial determination of the law’s meaning.

⁹³ *Arlington v. FCC*, 569 U. S. 290, 297 (2013) (emphasis added).

⁹⁴ *Clinton v. City of New York*, 524 U. S. 417, 452 (1998) (Kennedy, J., concurring).